BENCH QUESTIONS

Anticipated questions from the judges to the oralists

The Prosecutor v. General Roger Thorn

Confirmation of Charges Hearing, Article 61 Rome Statute
Pre-Trial Chamber I, The Hague

Count 1: Art. 25(3)(c) / Art. 8(2)(a)(ii), biological experiments (Jaku)
Count 2: Art. 25(3)(b) / Art. 8(2)(b)(ii), attack on civilian objects (three schools)
Both sides, both Counts

THE HENRY DUNANT MEMORIAL MOOT COURT COMPETITION 2026

How to use this document

How to use this. Questions are grouped by Count and by side, in the order a bench usually moves: (1) the legal test, (2) application to the facts, (3) the weakest point of the memorial, (4) a closing "so what" question. Each question has a short tag in brackets showing what the judge is testing. Bench questions are usually put to the side whose case is weaker on that point, so the "Prosecution" sets probe Prosecution gaps and the "Defence" sets probe Defence gaps.

Standard throughout: the Chamber asks whether there are **substantial grounds to believe** (Art. 61(7)), not whether guilt is proven beyond reasonable doubt.

COUNT 1

Art. 25(3)(c) / Art. 8(2)(a)(ii): biological experiments (Jaku)

A. Questions to the PROSECUTION (Count 1)

ELEMENT 1 – "BIOLOGICAL EXPERIMENT"

1. Counsel, the Elements define a biological experiment by its *primary purpose*. What is the evidence that Jaku's primary purpose was to study unknown effects rather than to treat 40 sick soldiers? *[primary-purpose test]*

2. You say an experiment needs no control group, protocol or data collection. Where does that definition come from, and doesn't it collapse the line between an experiment and every first-use of a new drug in an emergency? *[definition overbreadth]*

3. The Defence says Thorn was himself injected. Why is a commander who took the same drug as one of the "subjects" evidence of an experiment rather than of good faith? *[Thorn also a patient]*

4. Dr Loff described Jaku as "ready for human trials". Is that a statement about the drug's development stage or about the purpose of this administration? *[key factual phrase]*

5. You rely on *Whaling* ("design and implementation reasonable in relation to stated objectives"). Which feature of the design is unreasonable in relation to the objective of restoring health? *[application of the test]*

ELEMENT 2 – SERIOUS ENDANGERMENT

6. The danger is assessed "having regard to the state of health of the person". The soldiers were in comas or "holding on for their lives". Compared with withholding treatment, how did Jaku *increase* the danger? *[relative standard]*

7. You say the disorientation and paranoia lasted three months. Is there evidence that those symptoms fell within the charged period of 2–10 April, and that they were caused by Jaku and not by the unknown disease? *[causation and temporal limit]*

8. Does "serious" harm require long-term disadvantage, as the Defence argues? What is your authority for the lower threshold of "not mere temporary unhappiness"? *[threshold]*

ELEMENT 3 – NON-THERAPEUTIC / NOT IN THE VICTIMS' INTEREST

9. All 40 soldiers, including four in comas, recovered fully. How can an intervention that restored every patient to health be "not carried out in their interest"? *[outcome vs intent]*

10. Your enhancement theory rests on "we need to be stronger", said before Jaku was proposed. What evidence ties *that* remark to the decision to give Jaku? *[temporal link]*

11. The dose was raised after many soldiers still had symptoms. Why do you characterise that as enhancement when the Defence says it was a therapeutic adjustment? *[dose increase]*

12. Your memorial says consent "cannot cure" an experiment. Footnote/Elements for Art. 8(2)(a)(ii) do not exclude consent, unlike Art. 8(2)(b)(x). Isn't that omission deliberate, and shouldn't ambiguity favour the accused under Art. 22(2)? *[consent / Art. 22(2)]*

13. Is there any rule of international law that a comatose patient in a life-threatening emergency may not be treated without consent? What do you say about the emergency doctrine in the national systems the Defence cites? *[necessity / emergency]*

14. You cite Art. 11(4) AP I. Is that provision's text limited to persons in the power of the adverse Party? Why do you say Art. 8(2)(a)(ii) reaches further than the treaty from which it was drawn? *[AP I limit]*

ELEMENTS 4–5 – PROTECTED PERSONS

15. Footnote 33 says the perpetrator "needs only to know that the victim belonged to an adverse party". Doesn't that presuppose that protected victims belong to an adverse party? *[footnote 33 — your most serious problem]*

16. Identify one ICC, ICTY or national decision in which a State's *own* soldiers were held to be protected persons under Art. 8(2)(a). *[no precedent]*

17. In the Medical Trial, experiments on German nationals were prosecuted as crimes against humanity, not war crimes. How does that help you? *[Nuremberg]*

18. If GC I protects a State's own wounded and sick "in all circumstances", why did the drafters include an "adverse party" or "another party" requirement in Art. 8(2)(b)(x) and (e)(xi), and why is that *expressio unius* argument stronger than the Defence's reading of footnote 33? *[competing canons]*

19. What was *Ntaganda* (Appeals) actually deciding when it contrasted Art. 8(2)(a) with 8(2)(b)(xxii)? Is it authority for your position? *[reliance on *Ntaganda*]*

ELEMENTS 6–7 – IAC AND NEXUS

20. When exactly did the IAC begin? The mission turned back on 19 March because of disease and Pallavon treated the fire as natural. Did any Damaran force engage a Pallavon force before 1 June? *[IAC start date]*

21. You say there is no intensity threshold. What is the authority beyond Pictet and the ICRC Commentary that an unnoticed incursion, with no resistance and no awareness by the territorial State, is an armed conflict? *[low threshold]*

22. Even if there was an IAC, how does the medical treatment of Damaran soldiers in a Damaran hospital by a Damaran doctor have a nexus to it? What would have been different in peacetime? *[nexus]*

23. You say the five soldiers left in Pallavon kept the operation "under way". What is the evidence that they were alive, active or in contact with Thorn during the charged period? *[factual gap]*

ART. 25(3)(C) – MODE OF LIABILITY

24. Art. 25(3)(c) requires assistance "for the purpose of facilitating" the crime. What evidence shows that Thorn's *purpose* was to facilitate an experiment and not to save his men? *[purpose vs knowledge]*

25. Who is the principal, and did Dr Loff herself commit the crime with the mental element required by Art. 30? If she honestly believed Jaku would heal, is there a principal crime for Thorn to assist? *[accessory needs principal]*

26. Thorn said "if the Doc says it's good to go, then it can't be wrong". Why is deference to a medical expert not an honest mistake of fact that negates intent? *[mistake / reliance on expert]*

27. Did Thorn know that no consent had been obtained for the comatose soldiers, and did he know the dose increase was undisclosed? Where is that in the record? *[knowledge of consent]*

28. Your memorial says Thorn "knew the drug would be used for non-therapeutic purposes as a boost". Show me the evidence for that knowledge. *[knowledge element]*

CLOSING

29. If the Chamber finds the Titans were not protected persons, is there any other basis on which Count 1 can be confirmed? *[fallback]*

30. Is Count 1 as charged capable of confirmation if the Chamber doubts any *one* element? *[burden]*

B. Questions to the DEFENCE (Count 1)

ELEMENT 1 – EXPERIMENT VS EMERGENCY TREATMENT

1. Counsel, Dr Loff called Jaku "ready for human trials" and it was in the "early stages of development". Doesn't giving an untested drug to 40 people necessarily test its unknown effects? *[core weakness]*

2. You concede Dr Loff hoped Jaku would give immunity, strength and national prestige. How can you say these are "secondary" goals when the Prosecution says they show the real purpose? *[mixed motives]*

3. Medical exams recorded that performance "exceeded expectations". Isn't recording results the same as collecting data for study? *[data collection]*

4. You say no control group existed. Does the lack of a formal protocol make a programme not an experiment, or only a bad experiment? *[definition]*

ELEMENT 2 – ENDANGERMENT

5. The dose was doubled although many soldiers had reported headaches, disorientation and paranoia. How does increasing a dose despite known neuropsychiatric side-effects not seriously endanger health? *[dose increase]*

6. You say the symptoms were "temporary", relying on Dr Loff. Isn't that precisely what the Prosecution says proved false when the paranoia persisted? *[reliability of assurance]*

7. You say fatigue appeared three months later. Is the Chamber limited to harm within the 2–10 April window, or can it consider later evidence of the danger? *[temporal scope]*

ELEMENT 3 – JUSTIFICATION / CONSENT

8. You rely on *Herczegfalvy* and the "therapeutic necessity" doctrine. That case requires necessity to be "convincingly shown". What is your evidence beyond Dr Loff's statement that it "could help"? *[standard of proof of necessity]*

9. Did anyone tell the conscious soldiers that Jaku was experimental? Is a "verbal agreement" informed consent? *[informed consent]*

10. Nobody consulted the soldiers on the *higher* dose. How is that not a fresh intervention requiring fresh consent? *[consent scope]*

11. You say the comatose soldiers fell under the emergency principle. By 2 April, some had been ill since mid-March. Was it really an emergency requiring an unproven drug, and why not wait for conventional treatment? *[emergency]*

12. Your "uniform practice" argument draws on England, Canada, India and the US. Is that enough to establish a general principle of law under Art. 21(1)(c), and does any of it concern *unproven* drugs? *[Art. 21 general principles]*

13. Why does the fact that the principal in a Statute crime must have consent as an element matter less here? Wasn't the point of the prohibition to stop State-directed use of soldiers as guinea pigs? *[purpose of the rule]*

ELEMENTS 4–5 – PROTECTED PERSONS

14. Footnote 33 is the foundation of your argument. But footnote 33 deals with the mental element as to nationality. Does it define who is a protected person, or only what the accused must know? *[reading of the footnote]*

15. GC I Art. 12 protects the wounded and sick "in all circumstances" and without adverse distinction. Isn't "in all circumstances" fatal to your argument that a State's own soldiers fall outside it? *[Art. 12 GC I]*

16. The ICTY decisions you cite concerned civilians under GC IV, where nationality matters. Why do they govern GC I, where protection depends on condition (wounded or sick)? *[wrong Convention]*

17. Does the *Ntaganda* Appeals Chamber reasoning on rape of own forces (Art. 8(2)(b)(xxii)) cut against you, even if footnote 33 was not discussed? *[adverse authority]*

18. If the Chamber thinks the Elements are ambiguous, you rely on Art. 22(2). But Art. 22(2) governs the definition of a crime, not the choice between interpretations of other sources. Does it apply here? *[Art. 22(2)]*

ELEMENTS 6–7 – IAC AND NEXUS

19. The Titans entered Pallavon's territory with an armed force, set a fire, and left five soldiers inside to continue the mission. Why is that not a "resort to armed force between States"? *[low-threshold IAC]*

20. Is there any requirement in Common Article 2 or Tadi■ that hostilities reach a minimum intensity for an IAC? Isn't your "mere frontier incident" point drawn from *Nicaragua* on self-defence? *[wrong context]*

21. Even accepting no IAC before June, the Prosecution says the injections were meant to prepare the Titans for "when we go back in". Isn't that a nexus to a military campaign? *[nexus: purpose]*

22. Thorn said the Titans "need to be stronger" in front of the President. Why is that not evidence that the conflict played a substantial part in his decision to approve Jaku? *[nexus: decision]*

ART. 25(3)(C)

23. Thorn approved Jaku "without hesitation" and then approved the higher dose "on behalf of the Titans". Isn't that precisely "assistance"? What is left of your defence besides the mental element? *[actus reus]*

24. Thorn had felt "newfound strength" before approving the higher dose. Doesn't that show he saw Jaku as an enhancer? *[purpose evidence]*

25. Your mistake-of-fact argument says Thorn trusted the doctor. Can a commander who knew an early-stage drug caused paranoia in his men rely on an expert's reassurance? *[reasonableness of mistake]*

26. Do you accept that the Prosecution only needs "substantial grounds to believe" at this stage? Why is it not enough that the record is capable of supporting the charge and that the Trial Chamber should decide? *[confirmation standard]*

CLOSING

27. If the Chamber finds the Titans were protected persons, which of your remaining arguments is strongest? *[priority of arguments]*

28. Would the Defence accept that the question of whether Jaku was in truth therapeutic is a question for trial? *[confirmation vs trial]*

COUNT 2

Art. 25(3)(b) / Art. 8(2)(b)(ii): attack on civilian objects (three schools)

C. Questions to the PROSECUTION (Count 2)

CIVILIAN OBJECT / MILITARY OBJECTIVE

1. Counsel, Art. 52(2) AP I lists "purpose" as a separate basis for being a military objective. What does "purpose" mean if it does not cover an object that a government has formally decided to convert to military use? *[purpose limb]*

2. You say purpose must be "concrete, specific to the object attacked and objectively established". The Cabinet decision applied criteria that identified exactly 20 schools, including these three. Is that not specific? *[Cabinet decision]*

3. Seventeen of the 20 qualifying schools were converted. The final three were dismissed from teaching and evacuated, the same first step as before. Why is this not an objective indicator of purpose? *[pattern]*

4. The *Hirgigo* power station was not producing power but still qualified. How are the schools different from that object, which had not begun to contribute? *[*Hirgigo*]*

5. You say the evacuation was a civilian precaution. If the first step in every earlier conversion was evacuation, why should the Chamber ignore it here? *[competing inference]*

6. Art. 52(3) creates a presumption "in case of doubt" about whether a school "is being used". Does it speak to purpose at all? If not, how does it displace purpose under 52(2)? *[Art. 52(3) text]*

7. What do you make of Pallavon's own Cabinet language: "new sites to train recruits and prepare operations"? Isn't that a statement of military purpose by the party that controls the schools? *[Pallavon's own statement]*

8. You rely on the Safe Schools Guidelines. They are non-binding. Can they alter the definition of a military objective that you accept is customary? *[soft law]*

9. Does destroying a training site that Pallavon can replace in a day offer a "definite military advantage"? And does the Defence not say denying the replacement is the advantage? *[military advantage]*

10. You say conversion of town halls shows alternatives. If Pallavon was converting every kind of civilian building, why is the pattern not *more* indicative of purpose? *[town halls]*

11. The test is "circumstances ruling at the time". Why is a mass mobilisation of two million recruits not part of those circumstances? *[context]*

ATTACK AND INTENT

12. Art. 8(2)(b)(ii) requires that the perpetrator "intended" civilian objects to be the object of the attack. Do you say Thorn was virtually certain these were civilian objects? What is the evidence of virtual certainty? *[intent threshold]*

13. Is "he departed from the earlier practice of confirmation" evidence of intent, or only of negligence in verification? *[verification vs intent]*

14. Thorn proposed a night strike to minimise harm to civilians. Isn't that consistent with a belief that he was attacking a military objective? *[night strike]*

15. If the Chamber thinks Thorn believed the schools were *about to be* converted, is that a mistake of fact or mixed fact and law that negates intent under Art. 32? *[Art. 32]*

16. Who are the physical perpetrators? The record says "Damaran forces". For Art. 25(3)(b), who exactly held the intent required by Element 3? *[unidentified principals]*

17. Is the failure to verify a crime under the Statute, or is it only a breach of the precautions rules in Art. 57 AP I? *[precautions vs crime]*

18. You say the harm to cleaning staff was not "incidental". If the Chamber finds the schools were lawful objectives, does the case become one for Art. 8(2)(b)(iv), which is not charged? *[uncharged alternative]*

MODE OF LIABILITY – ORDERING

19. What is the evidence that Thorn had *authority* over the Como City missile forces? Chief of the Defence Force is a title; where is the chain of command? *[authority]*

20. The President asked "Are you sure we should strike them?" and Thorn replied. Doesn't that suggest that the decision remained with the President and that Thorn only advised? *[advice vs order]*

21. The agreed facts say Thorn "ordered them targeted". Does the Chamber have to take the SAF's word as a finding of an order under Art. 25(3)(b)? *[use of "order" in SAF]*

22. Supplying coordinates is assistance under Art. 25(3)(c), which is not charged. Why is it an order? *[wrong mode]*

23. Alternatively, inducing requires influence with a direct effect. The President already had a missile campaign running. What was Thorn's added influence? *[inducing]*

24. Does an order require a *recipient*? Who received it, and how do you prove that without identifying the recipient? *[recipient]*

DEFENCES

25. You say Thorn's belief was a prediction, not a mistake of fact. Is there really a difference when he based it on observed facts, namely 17 conversions and three evacuations? *[mistake]*

26. Weeks earlier Thorn said Jaku's benefits were "wearing off", and the President said the plan "doesn't sound like you". Why do you say the President's comment is irrelevant? *[Art. 31 / Jaku]*

CLOSING

27. If the Chamber holds the schools were military objectives by purpose, does Count 2 fall? *[dispositive]*

28. If the Chamber is satisfied about the civilian objects but not about Thorn's authority, may it confirm under the alternative mode (inducing)? *[fallback]*

D. Questions to the DEFENCE (Count 2)

MILITARY OBJECTIVE / CIVILIAN OBJECT

1. Counsel, on 20 July "no positive action had yet been taken to use the premises for military purposes". Isn't a school with no military activity a civilian object? *[agreed fact]*

2. You rely on purpose, which means intended future use. How far into the future may the Chamber look before purpose becomes mere speculation? *[limit of purpose]*

3. The Prosecution says the Cabinet decision identified a *category* of schools, and only 12 of 20 were initially converted. How does a category decision amount to a concrete purpose for these three? *[specificity]*

4. Five later conversions followed *attacks* on earlier ones. Doesn't that show conversion was a reaction to loss, not a settled plan for each school? *[conversion pattern]*

5. If the Defence's approach is correct, can any large school near a railway line in a country at war be attacked pre-emptively? Where is the limiting principle? *[slippery slope]*

6. *Hirgigo* involved a power station under construction and built for that function. These schools are still schools. Why is the analogy sound? *[distinguishing *Hirgigo*]*

7. Art. 52(3) says that where there is "doubt", the school is presumed civilian. The President himself doubted. Why does that doubt not engage the presumption, whatever Thorn's views on purpose? *[Art. 52(3)]*

8. You say Art. 52(3) concerns use only. Does the object-and-purpose of the provision, protecting schools from doubtful claims, support reading it that way? *[interpretation]*

9. What was the definite military advantage in destroying three evacuated schools that had not yet been used for anything? Isn't that exactly the prevention of future use that the Safe Schools Guidelines rejects? *[military advantage]*

10. Isn't "deny the adversary a replacement site" the same reasoning as *Kriegsraison*, that necessity overrides the law? *[Kriegsraison]*

11. Pallavon is also converting town halls. Why are the schools, not the town halls, the military objectives? Could the same reasoning make town halls targets without any particular fact about them? *[alternatives]*

INTENT / MISTAKE

12. Thorn knew that no conversion had begun and that use was unconfirmed. How can he be "virtually certain" the schools were military objectives, and not virtually certain they were civilian? *[Defence's framing of intent]*

13. For the earlier five schools the Titans waited for confirmation. Why did Thorn drop that safeguard for the final three? *[departure from practice]*

14. Is it a mistake of fact to believe a school will be converted, or is it a prediction? Does a prediction negate intent under Art. 32? *[mistake vs prediction]*

15. You say Thorn was mistaken about a normative element, "military objective". Does Art. 32(2) allow that excuse for a war crime, given that the Elements say no legal evaluation is required? *[Art. 32(2) / Elements intro]*

16. You say any failure to verify is a precautions issue. But the Prosecution says a total failure to verify can be evidence of intent. What do you say to that? *[verification as evidence]*

17. The strike was at 1:10 am. You say that was to minimise harm. Cleaning staff were killed. Doesn't that show the assessment was incomplete? *[night strike]*

18. *Hanan v Germany* concerned an Article 2 ECHR investigation. How is a decision that an investigation was adequate authority for how the ICC should assess intent? *[*Hanan*]*

ORDERING / MODE OF LIABILITY

19. The SAF says Thorn "ordered them targeted and provided strike coordinates" and "missiles were launched to coordinates provided by Thorn". You say that does not prove an order. What would? *[use of SAF]*

20. Thorn was Chief of the Damaran Defence Force. Is it plausible that he had no authority over the missile force? Could authority be reasonably implied? *[authority implied]*

21. The President said "I'll leave it with you". Doesn't that suggest the President delegated the matter to Thorn, rather than Thorn merely advising? *[delegation]*

22. The ICC does not require a formal superior–subordinate relationship. What is wrong with an inference of de facto authority from the whole circumstances? *[de facto authority]*

23. Alternatively, Thorn overcame the President's hesitation by insisting the pattern was obvious and proposing a night strike. Why is that not "inducing" with a direct effect? *[inducing]*

24. If the President decided to strike, are you saying the President, not Thorn, committed the crime? Does it matter under Art. 25(3)(b) that more than one person may be responsible? *[shared responsibility]*

25. You say the Prosecution has not identified who launched the missiles. Is it legally necessary to identify the perpetrators by name when the SAF says Damaran forces did so? *[identification of principals]*

CLOSING

26. If the Chamber finds the schools were civilian objects, which of your arguments still prevents confirmation? *[fallback]*

27. At the confirmation stage, is it enough that the Prosecutor offers a credible reading of the evidence, leaving the contested inferences about purpose and intent for trial? *[standard]*

28. Do you accept that, if the three schools were not military objectives, the attack on them was a war crime? *[concession]*

Quick tips for oralists

Answer first, then explain. Start with "Yes", "No" or "The short answer is…", then give your reasoning in one or two sentences, then return to your roadmap.

Concede cleanly where you must. Both memorials already concede points (the Defence on contextual elements of Count 2; the Prosecution that failure to verify does not itself prove intent). Showing the Bench you know the limit of your case builds credibility.

Know the facts by paragraph. Many questions turn on a phrase in the Statement of Agreed Facts: "no positive action had yet been taken", "ready for human trials", "I'll leave it with you", "Are you sure we should strike them?", "Even if they are not being used now, their purpose is clear", "need to be stronger", "for optimal results", "wearing off". Have SAF paragraph numbers ready.

Hot spots to rehearse hardest

- *Count 1, Defence:* footnote 33 and protected persons; Art. 12 GC I "in all circumstances".
- *Count 1, Prosecution:* the same footnote 33 point from the other side; IAC before 1 June; nexus; Thorn's *purpose* under Art. 25(3)(c).
- *Count 2, Defence:* the SAF's word "ordered"; Art. 52(3) doubt; "no positive action" at the three schools.
- *Count 2, Prosecution:* the evidence of authority over the missile force; the difference between virtual certainty and a failure to verify; *Hirgigo*.

Confirmation standard. Remind the Bench, when it helps you, that the test is substantial grounds to believe. The Prosecution should use it to argue that contested inferences are for trial. The Defence should say that substantial grounds require concrete and tangible proof, not speculation.